

(ORDER LIST: 1 U.S.)

THURSDAY, AUGUST 20, 2026

**CERTIORARI DENIED**

26-14      BELLAREVELATION V. LUCASJ\_SHAW

The petition for a writ of certiorari before judgment is denied.

SAICHARI, C. J., dissenting

## SUPREME COURT OF THE UNITED STATES

### IN RE BELLAREVELATION

#### ON PETITION FOR WRIT OF MANDAMUS AND PROHIBITION

No. 26–15. Decided August 20, 2026

The petition for a writ of mandamus and prohibition is denied.

CHIEF JUSTICE SAICHARI, dissenting from the denial of mandamus and prohibition.

The Court denies the petition for a writ of mandamus. I respect that disposition, but I cannot join my colleagues in such. I would grant the petition only to require reassignment of the underlying action and to vacate, without prejudice, orders entered after the circumstances giving rise to the present recusal question. I express no view as to whether Petitioner is ultimately entitled to relief from the congressional subpoena, which remains separately before this Court.

Petitioner’s own conduct warrants criticism. Once this matter was assigned to a judicial officer, she should not have continued discussing the substance of the pending litigation with that judge outside the ordinary course of proceedings. Whether she believed she was clarifying her complaint, correcting a misunderstanding, or responding to an ex parte exchange in DMs allegedly initiated by the District Judge is beside the point. Petitioner is herself a federal judge and should know better. But in *BellaRevelation v. roleplayersixrp6*, 1 U. S. \_\_\_\_ (2026), this Court made clear that a litigant’s procedural failures do not relieve a judge of the obligation to provide a neutral tribunal. The defect presented here is not manufactured by Petitioner’s litigation strategy, yet a defect exists nonetheless.

SAICHARI, C. J., dissenting

Before fully reviewing Petitioner’s pleading, the District Judge announced in substance in a private exchange that he would not issue the requested TRO and characterized the prospect as “hilarious.” When Petitioner urged him to read the complaint, he acknowledged having read only its first paragraph. A judge may approach an argument skeptically and may reject it in the strongest terms. Announcing the disposition of a pending application before reviewing the pleading presenting it is different. In my view, that alone creates an objectively reasonable question concerning impartiality. The subsequent denial, sua sponte dismissal, increasingly adversarial exchanges, and threat of a gag order merely compounded an appearance problem already present.

*In re Dannybec*, 1 U. S. \_\_\_\_ (2026), which I authored as Applications Justice, governs my view here. There I concluded on mandamus that a reasonable question concerning impartiality may warrant extraordinary relief absent actual bias where ordinary appellate review cannot adequately remedy the injury. The defect concerned “the propriety of the continued exercise” of judicial authority by the challenged adjudicator, not necessarily the validity of the underlying orders. I find no meaningful distinction requiring a different result here. Petitioner’s claims may succeed or fail in the ordinary Article III course; the structural question is who may properly decide them. I therefore would grant the petition in part, require reassignment, and vacate without prejudice the orders entered after the recusal problem arose.